

CHAPTER 3

Army and Air Force (Annual) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Army and Air Force Act to be in force for specified times.

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SCHEDULES:

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An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force, and to repeal certain enactments relating thereto.
[27th April 1950.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law:

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of

the possessions of His Majesty's Crown, and that the whole number of such forces should consist of four hundred and sixty-seven thousand :

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of two hundred and fifteen thousand :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and fifty on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands and the Isle of Man, on the thirtieth day of April ; and
- (b) elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and

Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Army and Air Force (Annual) Short title. Act, 1950.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say:—

(a) within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and fifty, to the thirtieth day of April, nineteen hundred and fifty-one, both inclusive; and

(b) elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and fifty, to the thirty-first day of July, nineteen hundred and fifty-one, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS AND REPEALS

PART I

Amendments of the Army Act applicable also (subject to modifications) to the Air Force Act

3.—(1) In paragraph (a) of subsection (3) of section ninety-one of the Army Act (which, as respects soldiers with homes in Northern Ireland, provides for their reception into mental hospitals in Northern Ireland on the order of the Army Council or an officer deputed by that Council) for the words "by order direct that the soldier shall be received" there shall be substituted the words "apply for the soldier's reception".

Amendment of s. 91 as respects Northern Ireland.

(2) In subsection (4) of the said section ninety-one for the words "an order under paragraph (a) of subsection (3) of this section" there shall be substituted the words "an application under paragraph (a) of subsection (3) of this section", and for the words "as if it were a reception order" to the end of the

PART I
—cont.

subsection there shall be substituted the words “as if it were an application made under section seven of the Mental Health Act (Northern Ireland), 1948”.

Power to
substitute
fine for
imprisonment
in certain cases.

4. At the end of subsection (1) of section ninety-nine of the Army Act (which makes it a punishable offence to make a false answer to any question in an attestation paper) and at the end of section one hundred and fifty-two of the Army Act (which makes it a punishable offence to pretend to be a deserter) there shall be added the words “or to a fine not exceeding twenty pounds”.

Penal
stoppages
from ordinary
pay of soldiers
sentenced to
imprisonment,
etc.

5. For paragraph (1) of section one hundred and thirty-eight of the Army Act (which provides for penal deductions from ordinary pay) there shall be substituted the following paragraph:—

“ (1) All ordinary pay—

(a) for every day of absence either on desertion or without leave, or as a prisoner of war ;

(b) for every day of imprisonment, corrective training, preventive detention, detention in a Borstal institution or detention of any other description, to which he is liable in consequence of an order or sentence of a civil court or an order of recall made by the Prison Commissioners, the Secretary of State or the Ministry of Home Affairs for Northern Ireland, for every day in custody (whether in prison or elsewhere) between conviction by a civil court and sentence, and for every day in custody on a charge for an offence of which the soldier is afterwards convicted by a civil court ;

(c) for every day of imprisonment, detention or field punishment awarded by a court-martial, the soldier's commanding officer, or, in the case of a soldier on board one of His Majesty's ships, the commanding officer of that ship, and for every day while a soldier is in custody on a charge for an offence of which he is afterwards convicted by a court-martial, or on a charge of absence without leave for which he is afterwards awarded detention or field punishment by his commanding officer ”.

Application
of Part I to
Air Force Act.

6. References in the preceding sections in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply.

PART II

Amendment of Army Act

7. After subsection (1) of section eighty-four of the Army Act (which provides that subject to regulations of the Army Council a soldier of the regular forces may in certain circumstances be re-engaged for such further period of army service as will make up a total continuous period of twenty-two years' service) there shall be inserted the following subsection :—

Period of
re-engagement
of soldiers
of certain
descriptions.

“(1A) Subject to any such regulations as aforesaid, in the case of soldiers of the regular forces enlisted outside the United Kingdom, being persons of such descriptions as may be specified in such regulations, the last foregoing subsection shall have effect as if for the reference to a period of twenty-two years' service there were substituted a reference to such shorter period of service as may be specified in the regulations.”

8.—(1) In section one hundred and seventy-nine of the Army Act (which provides for the modifications subject to which that Act applies to the Royal Marines) for the words from the beginning to “shall be made” there shall be substituted the words “This Act shall apply to the Royal Marines, and to the officers and men thereof, as it applies to any other part of the regular forces and to the officers and soldiers thereof, subject however to the following modifications”.

Application of
Army Act to
Royal Marines,
etc.

(2) After paragraph (19A) of the said section one hundred and seventy-nine there shall be added the following paragraph :—

“(19B) The Royal Marines shall be formed into a separate corps.”

(3) At the end of the said section one hundred and seventy-nine there shall be added the following paragraph :—

“Notwithstanding anything in the Royal Marines Act, 1948, or the Naval Reserve Act, 1900, this section shall apply—

- (a) in relation to an officer of the Royal Marine Forces Volunteer Reserve when he is ordered on any duty or service for which as such an officer he is liable as it applies in relation to an officer of the Royal Marines, and
- (b) in relation to a non-commissioned officer or marine of the said Reserve or of the Royal Fleet Reserve when he is called into actual service or is being trained or exercised as it applies in relation to a man of the Royal Marines ;

PART II
—cont.

and in this section references to a man of the Royal Marines shall include references to a non-commissioned officer of the Royal Marines ”.

(4) The following provisions are hereby repealed, that is to say, paragraph (21) of section one hundred and seventy-nine of the Army Act, in paragraph (8) of section one hundred and ninety of that Act the words from “and including” to the end of the paragraph, in paragraph (15) of the said section one hundred and ninety the words from “so however” to “separate corps”, and the proviso to subsection (2) of section one of the Royal Marines Act, 1948.

PART III*Amendment of Air Force Act*

Conditions for
re-engagement
of airmen.

9. In subsection (1) of section eighty-four of the Air Force Act (which allows an airman of the regular air force after the expiration of four years, reckoned as mentioned in that subsection, to be re-engaged either for a further period of air force service such as, with his previous service and any period previously served in the reserve, will make up a total continuous period of twenty-four years’ service or for such other further periods as are mentioned in the said subsection (1)) the proviso (which excludes for the purposes of that section any period of whole-time or part-time service within the meaning of Part I of the National Service Act, 1948) is hereby repealed; and after the said subsection (1) there shall be inserted the following subsections:—

“ (1A) In the case of a man who, before the beginning of his original term of enlistment, has been an officer or airman of the regular air force or the air force reserve or auxiliary air force, the aggregate of all the time so spent by him (whether continuously or not) in air force service, other than—

(a) time spent, as an officer or airman of the air force reserve or the auxiliary air force, while called out for training, or

(b) time spent before attaining the age of eighteen in service in the regular air force as a boy,

shall count towards completion of the period of four years mentioned in the last foregoing subsection or, if the said aggregate amounts to four years or more, so much of that subsection as prevents re-engagement before the expiration of the said period of four years shall not apply.

(1B) For the purposes of paragraph (a) of subsection (1) of this section, any period of part-time service within the meaning of Part I of the National Service Act, 1948, shall be disregarded.”

PART IV

Miscellaneous Amendments and Repeals

10. The amendments set out in the First Schedule to this Act shall have effect for repealing provisions which have become spent or otherwise for adapting the wording of the enactments referred to in that Schedule to changes in the law. Consequential repeals and amendments.

11. The enactments specified in the first column of the Second Schedule to this Act, being obsolete enactments which regulate the discipline and conduct of the army in Northern Ireland as respects the matters specified in the second column of that Schedule, are hereby repealed. Repeal of certain obsolete enactments.

SCHEDULES

FIRST SCHEDULE

CONSEQUENTIAL REPEALS AND AMENDMENTS

1.—(1) The following provisions are hereby repealed, that is to say:—

- (a) in section forty-one of the Army Act, paragraph (2A) (which provides for punishment by court-martial for offences under the Treachery Act, 1940), and in section fifty-seven of that Act, in subsections (1) and (2) the words “or for an offence under the Treachery Act, 1940”;
- (b) in the proviso to subsection (1) of section eighty-four of that Act (which provides for the disregarding of whole-time or part-time service within the meaning of Part I of the National Service Act, 1948, in the computation of the period of a soldier's army service for the purposes of his re-engagement) the words “whole-time or”;
- (c) in section one hundred and eight A of that Act, in subsection (4), the words from “Section one” to the end of the subsection (which excludes the operation of section one of the Rules Publication Act, 1893);
- (d) in section one hundred and forty-two of that Act, in subsection (1), the words “Commissioners of His Majesty's”, and subsection (4) (which makes provision as to offences triable under two enactments or under an enactment and at common law);
- (e) in section one hundred and fifty-six of that Act, subsection (8) (which makes special provision as to minimum fines in the case of colonies);
- (f) in section one hundred and eighty-seven of that Act, paragraph (4) (which directs that in relation to the militia the Isle of Man shall be treated as a colony);
- (g) section one hundred and eighty-seven C of that Act (which, so far as still in force, provides for the application of the Act to Newfoundland), and in section seven of the Visiting Forces

1ST SCH.
—cont.

(British Commonwealth) Act, 1933, subsection (2) (which, so far as still in force, provides that that Act shall operate in addition to, and not in derogation of, the provisions of any Act of Parliament applicable to a Newfoundland force by virtue of the said section one hundred and eighty-seven C);

(h) in section one hundred and ninety of the Army Act, paragraph (3) (which defines the expression "Commander-in-Chief").

(2) The provisions of the foregoing sub-paragraph, except heads (b), (f) and (h), shall apply in relation to the Air Force Act as they apply in relation to the Army Act.

2.—(1) At the end of section ninety-six of the Army Act and of section ninety-six of the Air Force Act there shall be added the following paragraph:—

"This section shall not apply in relation to apprentices who are deemed, by virtue of Part I of the National Service Act, 1948, to have been duly enlisted in any of His Majesty's forces."

(2) Subsection (4) of section twenty-six of the National Service Act, 1948 (which makes the same provision as the paragraph directed to be inserted in the Army Act and the Air Force Act by the last foregoing sub-paragraph) is hereby repealed.

3. In section one hundred and seventy-six A of the Army Act and in section one hundred and seventy-six A of the Air Force Act, in paragraph (a) of subsection (2) (which provides for the application of those Acts respectively in relation to officers of land forces and air forces raised under the Army and Air Force (Women's Service) Act, 1948, with modifications relating to relative ranks) after the word "officers" there shall be inserted the words "if and in so far as regulations made by His Majesty so provide" and for the words "regulations made by His Majesty" there shall be substituted the words "such regulations".

4.—(1) After section one hundred and eighty-seven A of the Army Act and after section one hundred and eighty-seven A of the Air Force Act there shall be inserted the following section:—

'Application 187AA. Notwithstanding anything in the Ireland Act, of Act to 1949, this Act shall apply in relation to the Republic of Republic of Ireland as it applies in relation to a foreign country and Ireland. not as it applies in relation to any part of His Majesty's dominions."

(2) In section one hundred and ninety of the Army Act and in section one hundred and ninety of the Air Force Act, in paragraph (23) (which defines the expression "Dominion") for the words from "Eire" to the end there shall be substituted the words "India, Pakistan and Ceylon".

5. In section one hundred and ninety of the Army Act and in section one hundred and ninety of the Air Force Act, in paragraph (37) (which defines the expression "county court judge" in Scotland and Northern Ireland) for the words from "includes" to "Northern Ireland" there shall be substituted the words "shall be construed, in relation to Scotland, as a reference to the sheriff or sheriff-substitute, and in relation to Northern Ireland as a reference to".

SECOND SCHEDULE

REPEAL OF OBSOLETE ENACTMENTS

<i>Session, chapter and extent of repeal</i>	<i>Nature of enactment repealed</i>
10 Will. 3. c. 8 (Ir.) Section twelve ...	Non-commissioned officers and soldiers not to go out of their garrison or other quarters with firearms except by command.
6 Anne c. 14 (Ir.) Section one ...	Detachments of more than fifteen soldiers not to march without an officer; officer to make reparation to persons complaining of trespasses and offences; procedure for recovery of damages in default of such reparation.
Section two ...	Detachments of less than fifteen soldiers not to march without a sergeant or corporal; sergeant or corporal to make reparation as aforesaid; recovery of damages as aforesaid.
Section ten ...	Officers and soldiers not to destroy game, poultry or fish without leave of the lord of the manor.
39 Geo. 3. c. 59 (Ir.) The whole Act, so far as still in force.	An Act to enable His Majesty's forces, under orders of march, to pass through turnpikes and over bridges toll free.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Rules Publication Act, 1893	56 & 57 Vict. c. 66.
Naval Reserve Act, 1900	63 & 64 Vict. c. 52.
Air Force (Constitution) Act, 1917	7 & 8 Geo. 5. c. 51.
Visiting Forces (British Commonwealth) Act, 1933	23 Geo. 5. c. 6.
Treachery Act, 1940	3 & 4 Geo. 6. c. 21.
Royal Marines Act, 1948	11 & 12 Geo. 6. c. 25.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Ireland Act, 1949	12, 13 & 14 Geo. 6. c. 41.